

Court No. - 3

Case :- WRIT - C No. - 6007 of 2025

Petitioner :- Arun Kumar Rai

Respondent :- State Of U.P. And 7 Others

Counsel for Petitioner :- Alok Kumar Rai

Counsel for Respondent :- Abhishek Krishna,C.S.C.,Chetan Chatterjee

Hon'ble Anjani Kumar Mishra,J.

Hon'ble Jayant Banerji,J.

Heard learned counsel for the petitioner and Shri Chetan Chatterjee, who appears for the respondent Nos. 2 and 3 as also learned counsel appearing for the respondent No. 4.

The petitioner is aggrieved by orders dated 24.03.2023, 21.03.2023, 06.02.2025 and 11.02.2025.

Basically, the electricity connection No. 9857367247 in the name of the petitioner has been disconnected by the third respondent.

Learned counsel appearing for the respondents have submitted that the disconnection has been ordered because there exists a decree in favour of the respondent in a suit for prohibitive injunction. On the basis of the said decree passed by the First Appellate Court, mutation has been made in favour of the respondents. As a consequence, the electricity connection in the name of the petitioner has been disconnected.

It is also submitted that a person aggrieved by an action of the Electricity Department has a remedy of approaching the Redressal Forum under 7.10 of the Electricity Supply Code.

Besides, in our considered opinion and since it is the case of the petitioner that he preferred a time barred appeal against the decree of the First Appellate Court which is pending consideration, the petitioner can also obtain appropriate order in the said case. However and since the petitioner has at least two other alternative remedies available, this Court refuses to interfere in the matter.

The writ petition is dismissed.

Order Date :- 28.2.2025

Aditya Tripathi